

Subj: **Rendlesham FOI Breakthrough**
Date: 7/23/02 4:01:47 AM Eastern Daylight Time
From: [REDACTED]
To: Undisclosed-Recipient.,,

— Original Message —

From: UFO UpDates - Toronto (by way of UFO UpDates - Toronto <[REDACTED]>)
To: - UFO UpDates Subscribers 02 - :
Sent: Tuesday, July 23, 2002 3:50 AM
Subject: UFO UpDate: BUFOSC'S Rendlesham FOI Breakthrough

[REDACTED]om>
To: u[REDACTED]et
Subject: BUFOSC'S Rendlesham FOI Breakthrough
Date: Mon, 22 Jul 2002 13:32:19 +0100

Dear All,

We should like to make the following important statement:

Eric Morris received a letter from the MOD on Friday, 18th July. The British Ministry of Defence wrote to him in response to an official complaint we had made, through Mike Hall, MP, relating to its decision to withhold three documents we had requested under the provisions of the British government's 1997 Code Of Practice On Access To Government Information.

We had asked for the remaining three papers from the MOD's Rendlesham File to be released. Our initial request was refused, so we appealed via the Parliamentary Ombudsman. Mike Hall was very skeptical about our chances of success, but we appealed anyway. We carefully constructed our letter, bearing in mind the MOD's own reasons for withholding the documents, as stated in Part 2 of the Code, as follows - see:

[REDACTED]m

"2. Internal discussion and advice. Information whose disclosure would harm the frankness and candour of internal discussion, including: proceedings of Cabinet and Cabinet committees; internal opinion, advice, recommendation, consultation and deliberation; projections and assumptions relating to internal policy analysis; analysis of alternative policy options and information relating to rejected policy options; confidential communications between departments, public bodies and regulatory bodies."

We argued that release of these over 20-year-old documents should not prejudice (2), as stated above.

The Ombudsman agreed with us and stated, in his letter, that the

remaining documents would be released _only_ because of our official complaint. It also emerged that just 12 people, including five members of BUFOSC, had asked for these documents.

Thanks to BUFOSC the remaining documents should be released to us "within 1-2 weeks", according to our contact, Mr. Coleman, at the MOD.

We believe that we have set an important precedent here. The MOD will no longer be able to use (2) as an excuse for denying sensible requests for information from members of the public. In other words, officials will have to give rather better reasons for withholding documents! The provisions of the Code of Practice and the subsequent Freedom of Information Act (2000) are, we believe, clear and allow for much of this type of information to be released upon request.

We should like to point out that MOD staff have been very helpful in this matter. Although we naturally disagreed with the initial decision, we were kept fully informed throughout the appeal. Indeed, it seems that the MOD is being very helpful to certain researchers where it is clear that they are not making unnecessary or "vexatious" requests for information.

So, it is thanks to BUFOSC that these documents are to be released. That much is clear from the MOD's letter. We doubt that the documents in question will tell us much about Rendlesham. It is the principle of the thing that we were challenging.

We believe that it is now possible for Ufologists, and other bona fide researchers, to request information and use this case to justify the release of further documents. Although each case is investigated on its merit, our actions in this regard have moved things forward considerably.

True, it has taken several months to get to where we are, but we are glad we made the complaint.

In due course we shall be making the documents available for all to see. We'll do this as soon as possible.

Many thanks,

XXXXXX
XXXXXX

British UFO Studies Centre, Northwich, Cheshire.

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